

-

File No.: EXP202401045

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on December 5, 2023. The complaint is directed against the DEPARTMENT OF HEALTH AND SOCIAL SERVICES of the GOVERNMENT OF EXTREMADURA, with NIF S0611001I (hereinafter, the respondent). The grounds for the complaint are as follows: the claimant states that he received a copy of the protection file of his minor child (...) from the competent technician, which contains data about his health ((...)), information related to the interview held on ***DATE.1, in which the claimant stated that he was going to file a shared custody lawsuit against his ex-wife and that she did not know about it, and he did not want her to find out, along with several notes regarding phone conversations held with the aforementioned technician; he also claims that his ex-wife has also obtained a copy of the said file, without anonymization, which could violate data protection regulations; he states that his ex-wife confirmed to him via the instant messaging application WhatsApp that she has a copy of the social services file.

He provides a copy of the aforementioned file.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 01/19/2024, the complaint was forwarded to the respondent, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 01/25/2024 as noted in the acknowledgment of receipt in the file.

In a document dated 02/09/2024, the claimant submitted Law 14/2015, of April 9, on Social Services of Extremadura.

The respondent, in a document dated 03/13/2024, stated that after analyzing the documentation sent by the AEPD, it provides the report issued by the General Secretariat of Social Services, Inclusion, Childhood, and Family along with the report from the technical staff that includes a chronology of the actions taken.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

2/14

THIRD: On 03/05/2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On 06/14/2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

FIFTH: The notification of the initiation agreement (sent by the AEPD on 06/17/24 at 08:51) expired due to lapse, as the deadline for appearance was exceeded, as of 06/28/24 at 00:00, as noted in the acknowledgment of receipt) the respondent did not submit a written statement of allegations.

SIXTH: On 07/29/2024, a period for the practice of evidence was initiated, agreeing to the following: To consider the complaint filed by the claimant and its documentation, the documents obtained and generated that are part of the file as reproduced for evidentiary purposes.

On 08/13/2024, an email was received from the respondent stating that "On August 7, this Administration accessed the notification from the AEPD regarding file EXP202401045 through the Single Enabled Electronic Address (DEHÚ), which contains the following content:

Once the period for allegations granted in the initiation agreement of sanctioning procedure No. EXP202401045 has elapsed, it is agreed to open a period for the practice of evidence for a period of 10 (ten) days starting from the day following the notification of this act (...)"

Thus, we inform the AEPD that there is no record of this Administration having received any documentation regarding the opening of the initiation agreement of sanctioning procedure in the matter with file number EXP202401045.

We request that the AEPD rectify or clarify the possible error in the referenced matter as soon as possible."

As previously noted, on 06/14/2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, the initiation agreement which was sent on 06/17/24 at 08:51 expired due to lapse, as the deadline for appearance was exceeded, as of 06/28/24 at 00:00, as noted in the acknowledgment of receipt Rejection of notification due to lapse.

SEVENTH: On 08/29/2024, a Proposal for Resolution was issued stating that the Director of the AEPD should declare that the respondent had infringed the provisions of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/14

On 09/09/2024, the responding party submitted a written statement of allegations summarizing the following: that the parents of the minor are considered interested parties in the procedure, hold parental authority over the minor, and could be affected by the resolution that may arise from the initiated file; the administrative file, which is regulated by Article 70 of the LPACAP, includes the documents and proceedings of the actions carried out in the development of the procedure that serve as antecedents and grounds for the administrative resolution to be issued, including the proceedings in which the interviews held with the minor's parents are reproduced, and given that the interview constitutes a fundamental assessment tool within the procedure where the treatment activity is carried out; for all these reasons, the responding party has acted in full compliance with the regulatory framework of the procedure, as well as the regulations regarding the protection of personal data, and therefore requests the filing of the procedure.

PROVEN FACTS

FIRST. On 05/12/2023, a written statement from the claimant was received by the Spanish Agency for the Protection of Data, stating that he had received a copy of the protection file of his minor child, no. (...) from the competent technician of the responding party, which contains data about his health and information related to the interview he had with the aforementioned technician on ***DATE.1, in which he informed her that he was going to file for shared custody against his ex-wife, which she did not know and also did not want her to find out, as well as notes related to telephone conversations held with the same person; he states that his ex-wife has also obtained a copy of the referred file, without anonymization, which his ex-wife has confirmed to him through the instant messaging application WhatsApp, indicating that she has a copy of the social services file.

SECOND. A cross-communication has been submitted by the claimant with his ex-wife through the social network WhatsApp, in which she confirms that she has a copy of the social services file containing the facts and data stated by the claimant in his complaint.

THIRD. The claimant has submitted file no. (...), a copy of which was delivered to him on 01/12/2023. It contains the request from the claimant's ex-wife addressed to the responding party requesting that a copy of the same be provided to her, dated ***DATE.2.

FOURTH. Additionally, a report from the Family Program and Basic Social Care Service of the General Directorate of Social Policies and Childhood and Families regarding the minor, child of the claimant, has been submitted.

LEGAL GROUNDS

I

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/14

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the Proposal for Resolution

The party being complained against has alleged that "the documents and proceedings carried out in the development of the procedure, which serve as antecedents and grounds for the administrative resolution that is ultimately issued, are part of and are recorded in the Protection File No. (...) including the proceedings in which the interviews held with the minor's parents are reproduced, given that the interview constitutes a fundamental assessment tool within the procedure where the processing activity is carried out" and that in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), and upon their request, the affected parties were provided with the opportunity to know the data or actions of the administrative file so as not to limit their right of defense.

Article 53, Rights of the interested party in the administrative procedure, establishes that:

"1. In addition to the other rights provided for in this Law, the interested parties in an administrative procedure have the following rights:

a) To know, at any time, the status of the processing of the procedures in which they have the status of interested parties; the meaning of the administrative silence that corresponds, in case the Administration does not issue or notify an express resolution within the term; the competent body for its instruction, if applicable, and resolution; and the procedural acts issued. They shall also have the right to access and obtain copies of the documents contained in the aforementioned procedures. Those who interact with Public Administrations through electronic means shall have the right to consult the information referred to in the previous paragraph, at the General Electronic Access Point of the Administration, which will function as an access portal. The obligation of the Administration to provide copies of the documents contained in the procedures shall be deemed fulfilled by making them available at the General Electronic Access Point of the competent Administration or at the corresponding electronic offices.

b) To identify the authorities and personnel serving the Public Administrations under whose responsibility the procedures are processed.

(...)"

From this, we can deduce that access can be exercised at any time, and that such access includes:

- The status of the processing of the procedure, that is, the phase of the administrative procedure in which it is located.
- Physical access to the same file.
- The right to obtain copies of the documents contained therein. (The right to obtain copies does not imply their free provision).
- The right to identify the officials involved in it, etc.

In this way, interested parties are facilitated to know the data, reports, actions, etc., that make up the administrative file in order not to limit their rights and to prevent the generation of defenselessness. However, Article 13, Rights of individuals in their relations with Public Administrations, also establishes that:

“Those who, in accordance with Article 3, have the capacity to act before Public Administrations, are entitled, in their relations with them, to the following rights:

“(…)

h) To the protection of personal data, and in particular to the security and confidentiality of the data contained in the files, systems, and applications of the Public Administrations.

“(…)

These rights are understood without prejudice to those recognized in Article 53 referred to the interested parties in the administrative procedure.”

The complainant in their complaint referred to the fact that the technician from the Ministry had been informed confidentially and privately of their intention to file a shared custody lawsuit against their ex-wife, which she did not know, and that they hoped this information would not be disclosed for her knowledge, as well as sensitive data included in the file, of which their ex-wife had obtained copies, considering that this private information that had been communicated to them was excessive and unnecessary.

6/14

The document titled REPORT ON THE PROGRAM FOR FAMILIES AND SOCIAL SERVICES OF BASIC SOCIAL CARE. GENERAL DIRECTORATE OF SOCIAL POLICIES AND CHILDREN AND FAMILIES is included in the file. In this document, under the heading 2. LEVEL OF STABILITY AND LIFESTYLE OF THE PARENTS, in section c) Physical and mental health status, referring to both parents.

Regarding the mother, it is stated:

“(…)

(…) she is not well, she was given (…) this summer...

(…).

Additionally, (…) privately, once a week...

(…)”

And regarding the father:

“The father is (…)

After the incident, (…) but he still does not have (…).

He reports not feeling well (…).

The father needs (…).

He also has (…).

(…) he had been seeing [a professional] since before summer, as he wants to ask for (…) and went to have him guide him in (…)

He states that he has suffered (…)

(…)”

In the Proposal for Resolution, it was already indicated that it was necessary to carry out a careful analysis of the consequences that could arise from the possibility of accessing sensitive data, personal data subject to special protection such as health data, as well as information contained in statements or declarations made during interviews throughout the procedure, which, when considered in isolation, do not seem to provide or reveal important information about private life, health, or other circumstances related to a specific person, but which, when considered together, may yield extremely sensitive and confidential information about the particular, private, and intimate situation of a person, which in any case should be anonymized.

Health data constitutes a special category of data, according to Article 9.1 of the GDPR, the processing of which is generally prohibited, unless certain exceptions provided for in point 2 of the aforementioned Article 9 of the GDPR apply.

The GDPR defines in its Article 4.15 health-related data as “personal data related to the physical or

mental health of a natural person, including the provision of health care services, which reveal information about their health status.”

Recital 35 of the GDPR clarifies this definition by stating that “Among the personal data related to health, all data related to the health status of the data subject that provide information about their past, present, or future physical or mental health status must be included. This includes information about the natural person.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/14

collected in connection with their registration for healthcare purposes, or in connection with the provision of such assistance, in accordance with Directive 2011/24/EU of the European Parliament and of the Council; any number, symbol, or data assigned to a natural person that uniquely identifies them for healthcare purposes; information obtained from tests or examinations of a part of the body or a bodily substance, including that derived from genetic data and biological samples, and any information related, for example, to an illness, a disability, the risk of suffering from diseases, medical history, clinical treatment, or the physiological or biomedical status of the individual concerned, regardless of its source, for example, a doctor or other healthcare professional, a hospital, a medical device, or an in vitro diagnostic test.”

In this regard, the Court of Justice (CJEU) interpreted this concept broadly, considering as health data the information related to all aspects, both physical and mental, of a person's health, both regarding their health status (that they have injured a foot) and that they are in a situation of partial sick leave (CJEU judgment of November 6, 2003, Lindqvist, C-101/01).

And the CJEU ruling of 10/04/2024, in case C 21/23, determines that when the processing of personal data may indirectly reveal sensitive information about a person, such data falls under the regime provided for in Article 9 of the GDPR: “82 In particular, such provisions should not be interpreted as meaning that the processing of personal data that may indirectly disclose sensitive information about a natural person is outside the enhanced protection regime established by the aforementioned provisions, as being excluded would undermine the useful effect of that regime and the protection of the freedoms and fundamental rights of natural persons that it seeks to guarantee (judgment of August 1, 2022, Vyriausioji tarnybinės etikos komisija, C 184/20, EU:C:2022:601, paragraph 127).”

Also, Opinion 1/15 of the Court of Justice (Grand Chamber) of 07/26/2017, paragraph 128 states: “128 On the other hand, even if some of the PNR data, when considered in isolation, do not seem to reveal important information about the private lives of the affected individuals, it remains true that, when considered together, such data may reveal, among other things, a complete travel itinerary, travel habits, existing relationships between two or more people as well as information about the economic situation of air passengers, their eating habits, or their health status, and could even provide sensitive data about those passengers, as defined in Article 2, letter e), of the Agreement provided.”

It is for this reason that, as occurs in the present case, personal data subject to special protection when considered in isolation may not pose a risk in relation to the aforementioned treatments, such as when they are accessed in connection with their inclusion and transfer of an administrative file, upon request, to the interested party; but the combination of all of them may reveal/disclose indirectly sensitive or intimate information about a natural person, enabling a portrait of the private life of the affected individual(s).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/14

On the other hand, it is true that, as the respondent party points out, the interview is one of the techniques used during the instruction process of a Protection File with the aim of evaluating and making decisions regarding the family situation of a minor.

However, this is not about questioning the mentioned technique, which can, as in the present case, verify or refute existing data regarding the possible existence of a situation of neglect, which does not concern that agency at all; rather, it is about the information provided during the interview or in reports regarding a specific personal situation, when they are conveyed together, as in the present case, following a request for the file by a third party, which may allow for a portrayal or judgment of the affected person.

Therefore, the allegation made by the respondent party must be rejected.

III

Unfulfilled obligation: violation of Article 5.1.c) of the GDPR

In the present case, the facts materialize in the receipt by the complainant of a copy of the protection file of their minor child, containing specially protected data, and in which the complainant informs the acting technician of their intention to file a shared custody claim against their ex-wife, and that this information was not adequately protected, as a complete copy of the report was sent to their ex-wife, which could constitute a violation of the regulations regarding the protection of personal data.

Article 5, Principles relating to processing, of the GDPR establishes that:

“1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);

(...)”

The documentation in the file provides clear evidence that the respondent violated Article 5 of the GDPR, principles relating to processing, by enabling access to personal data as a result of sending the neglect declaration file to their ex-wife, thereby violating the data minimization principle set forth in the aforementioned article.

Article 5 of the GDPR refers to the general principles for data processing. In its paragraph c), it refers to the data minimization principle, indicating that data must be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

If we examine the definition, we can deduce that only the personal data that will be processed can be collected, that is, those that are strictly necessary for the processing; that they can only be collected when they are going to be processed and that they can only be used for the purpose for which they were collected, but not for any other objective.

The complainant has stated that the file contains data about their health status and that, furthermore, in the interview held on ***DATE.1, they expressed to the technician that they were going to file a shared custody claim against their ex-wife and that, since she did not know, they did not want her to find out; this data and the statements of the complainant are included in the Social Services report and have been conveyed to their ex-wife without their consent.

For its part, the respondent party has indicated that the parents of the minor requested a copy of the file, one on ***DATE.2 and another on ***DATE.1, being delivered in the offices of the Ministry of Social Services, Inclusion, Childhood, and Family; that the affected parties were allowed to know the data and actions included in the administrative file so as not to limit their right of defense and, therefore, to avoid generating defenselessness, complying at all times with the regulations governing the administrative procedure.

In the present case, the respondent is attributed in the sanctioning procedure initiated a violation of the data minimization principle provided for in Article 5.1.c) of the GDPR, which states: “Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).

(...)”

It is worth mentioning the considerations regarding the data minimization principle made by the European Data Protection Board (EDPB) in Guidelines 4/2019, “on Article 25, Data protection by design and by default,” version 2.0, dated 20/10/2020, adopted in compliance with the function assigned to it by Article 70 of the GDPR to ensure its consistent application. In paragraph 74 of these

guidelines, it is established that: “Firstly, data controllers must determine whether they even need to process personal data for their relevant purposes. The controller must verify whether the relevant purposes can be achieved by processing less personal data, or by using less detailed or aggregated personal data, or without having to process personal data at all. This verification must take place before any processing, but it can also be carried out at any time during the processing cycle.” (Paragraph 74).

And in its paragraph 76, Guidelines 4/2019 indicate that “Essential elements by design and by default regarding data minimization” include, among others, the following:

- Avoidance of data: All processing of personal data will be avoided when possible to fulfill the relevant purpose.
- Limitation: The amount of personal data collected will be limited to what is strictly necessary for the intended purpose.
- Access limitation: The processing of data will be configured in such a way that the number of people who need to access personal data to perform their functions is minimized, and access will be limited accordingly.
- Relevance: Personal data must be relevant to the processing in question, and the data controller must be able to demonstrate such relevance.
- Necessity: Each category of personal data will be necessary for the specified purposes and should only be processed if it is not possible to achieve the purpose by other means.

Well, the responding party provided the file containing data and information that was neither necessary, nor appropriate, nor relevant, as it should only be processed in accordance with the intended purpose.

Therefore, it is necessary to carry out a proper assessment of the information to be provided, weighing the circumstances surrounding a particular processing, analyzing the consequences that may arise from access to certain data such as health data, which is especially protected, as well as the private information disclosed through statements and declarations during an interview, whose transfer or provision may be considered excessive and unnecessary, violating the regulations on the protection of personal data, Article 5.1.c) of the GDPR.

Also, in Recital 39 of the GDPR it is stated that: “...Personal data must be adequate, relevant, and limited to what is necessary for the purposes for which they are processed.”

Therefore, it is considered that the conduct of the responding party in transferring certain data contained in the file revealing not only the health data of the claimant, which is especially protected, but also the impressions and private statements made during the interview with the social services technician, is deemed inappropriate, unnecessary, and not limited to the specific purpose, violating Article 5.1.c) of the GDPR, an infringement classified under Article 83.5 a) of the GDPR.

III

Classification and qualification of the infringement

The infringement attributed to the responding party is classified under Article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9” is subject to sanction.

The LOPDGDD in its Article 71, Infringements, states that: “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

11/14

And in its Article 72, it considers for the purposes of prescription that: "Infringements considered very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)"

IV

Applicable regime to the responding party

Article 83 "General conditions for the imposition of administrative fines" of the GDPR in its paragraph 7 establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Likewise, Article 77 "Applicable regime to certain categories of controllers or processors" of the LOPDGDD provides the following:

"1. The regime established in this article shall apply to the processing for which they are responsible or for which they are processors:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be taken to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which they are hierarchically dependent, where appropriate, and to the affected parties who had the status of interested parties, where appropriate.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/14

3. Without prejudice to what is established in the previous section, the data protection authority will also propose the initiation of disciplinary actions when there are sufficient indications for doing so. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regimes that are applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for the treatment that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order the publication in the Official State Gazette or the corresponding regional gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities.

This provision establishes that the procedures arising from infringements in the area of personal data protection committed by the categories of controllers or processors listed in section 1 will be resolved, in any case, by declaring the infringement.

V

Adoption of measures

The corrective powers attributed to the AEPD as the supervisory authority are listed in Article 58.2, sections a) to j) of the GDPR.

Once the infringement has been confirmed, it is appropriate to order the responsible party to adopt measures to adjust their actions to the aforementioned regulations, in accordance with what is established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

Therefore, it is deemed appropriate to order the respondent, within six months from the finality of the sanctioning resolution that, in any case, is issued, to adjust the processing activities subject to this procedure to the applicable regulations, in this case, to the provisions of Article 5.1.c) of the GDPR.

The text of this agreement establishes what the facts are that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as they are the ones who fully know their organization and must decide, in

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/14

based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence presented, it is agreed to require the entity being claimed against to adopt measures that prevent the provision of personal data of third parties that are not strictly necessary for the defense of their interests.

It is warned that failure to comply with the order imposed by this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

The Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the DEPARTMENT OF HEALTH AND SOCIAL SERVICES, with NIF S06110011, has infringed the provisions of article 5.1.c) of the GDPR, an infringement classified in article 83.5.a) of the GDPR.

SECOND: TO ORDER the DEPARTMENT OF HEALTH AND SOCIAL SERVICES, that pursuant to article 58.2.d) of the GDPR, within six months from the date this resolution becomes final and enforceable, to prove that it has complied with the appropriate measures to prevent incidents like the one that led to the initiation of the sanctioning procedure.

THIRD: TO NOTIFY this resolution to the DEPARTMENT OF HEALTH AND SOCIAL SERVICES.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of article 77.5 of the LOPDGDD.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested

parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/14

Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the final resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es